

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 9, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR - Marian Orr, COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. [Kris Jones, City Clerk, reported for the record that Dr. Rinne joined the meeting 6:01 p.m. prior to the vote on Consent Agenda]

[CA] Minutes from Regular Meeting of the Governing Body on October 26, 2020. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending Section 8.56.070, Loudspeakers, Sound Cars, and Sound Trucks, of Chapter 8.56, Noise Control, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes”- all members of the governing body. (#4328)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR (High-Density Residential) to CB (Community Business) for property generally located east of Interstate 25 and north of Central Avenue adjacent to Hynds Boulevard. Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4329)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of Lot 1, Block 2 and Lot 1, Block 3, Back 40 Subdivision Second Filing from MUB (Mixed-Use Business Emphasis) to CB (Community Business) for property generally located north of West Lincolnway at Grant Avenue. Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4330)

ORDINANCE –3rd READING – Vacating the entirety of the Stinson Avenue right-of-way lying between Blocks 404 and 410, Original City, Cheyenne, Laramie County, Wyoming and south of West Lincolnway Highway. Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4331)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create Specific Use Standards for the use ‘Emergency Shelter’. Mr. Case moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4332)

ORDINANCE – 2nd READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. (Postponed from October 26, 2020). Sheila Foertsch, Katie Legerski, Executive Director for Wyoming Contractors, Association, Mike Vaughn, Vaughn Concrete Products and Rick Fierro, Ram Trucking, voiced support for postponing or tabling the ordinance voicing concerns involving: time to evaluate proposed amendments, limitations on delivery of products and loss of revenue to members of the trucking industry. Chief Brian Kozak, Cheyenne Police Department, advised trucks that can drive on highways without a permit can also drive on city streets without a permit and that the city will allow overweight permits for divisible loads. He reported the change would be a burden to the Police Department Traffic Unit as they will be trained in weight enforcement and that cause must exist before a truck can be weighed. Chief Kozak also noted the department has had multiple meetings with the trucking industry. Mr. Case moved to approve on second reading, seconded by Dr. Rinne. Mr. Case moved to amend by substitute titled “November 3, 2020 amendment to the October 26, 2020 amendment”, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body. Dr. Rinne moved to amend Section 10.44.70 by deleting the last sentence and replacing it with “Wyoming State Statute 31-18-802 with Tables 2 and 2, seconded by Mr. Luna. Discussion included potential postponement and concerns involving including statutes as they can be amended. Motion to amend carried. Voting “yes” – all members of the governing body. Dr. Rinne moved to amend Section 10.44.060 line two by adding the term “overweight”, seconded by Mr. White. Motion to amend failed due to a tie vote. Voting “yes” – Mr. Cook, Mayor Orr, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” – Mr. Case, Mr. Esquibel, Mr. Laybourn, Mr. Luna and Mr. Shanor. Dr. Rinne moved to postpone to November 23, 2020, seconded by Mr. Roybal. Discussion continued relating to the following concerns and topics: Additional time requested to consider and evaluate proposed amendments, compliance with State and Federal regulations, enforcement, options to table or postpone ordinance and protecting longevity and integrity of city streets. Kris Jones, City Clerk, provided clarification relating to potential postponement timelines. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending Section 2.84.070, Board of Adjustment, of Chapter 2.84, Miscellaneous Boards and Commissions, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board of Adjustment – referred to Public Services Committee.

ORDINANCE –1st READING – Amending Section 15.52.060(B), Notification of Issuance or Denial-Appeal, and Section 15.52.100, Variances, of Chapter 15.52, Solar Access Permit System, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board of Adjustment – referred to Public Services Committee.

ORDINANCE –1st READING – establishing a Planned Unit Development (PUD) District for property generally located northwest of the intersection of North Gate Avenue and Yellowstone Road – referred to Public Services Committee.

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$39,348.39 for City of Cheyenne accounts and \$23,290.93 for Board of Public Utilities sanitation accounts pursuant to Wyoming Statute §16-4-502 – referred to Finance Committee.

[CA] RESOLUTION – Approving water and sanitary sewer services, by Outside User Water and Sanitary Sewer Services Agreements, for Tri-State Generation and Transmission, Lot 4, Block 10, North Range Business Park, 3rd Filing, situated in the NE¼ SE¼ of Section 4, Township 13, North, Range 67 West, of the 6th P.M., Laramie County – referred to Finance Committee.

[CA] Preliminary Plat for Sweetgrass, 5th Filing, a subdivision of a portion of the N ½ of Section 16, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located south of E. College Drive, east of Sweetgrass Drive) – referred to Public Services Committee.

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne, Wyoming, and Cheyenne Regional Air Service Focus Team (CRAFT), for Skywest Airlines to provide scheduled flight services between Cheyenne, Wyoming and Denver, Colorado (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$148,350.50) (#7253)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Ayres Associates for the Converse Avenue Reconstruction Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$120,175.00) (#7254)

Memorandum of Understanding between EQ Capital, LLC, and the City of Cheyenne to build a technology ecosystem in Wyoming focused on investing in tech startups. Brandon Ames, Chief Economic Development Officer, provided details of the Memorandum of Understanding (MOU). Mr. Ames advised the city bears no financial responsibility relating to the MOU, that Cheyenne was chosen due to the proximity to Denver, CO. and the purpose is to help startup companies in Cheyenne. He reported the intent is to partner with the city to create business opportunities noting EQ Capital, LLC was instrumental in the development of companies such as Door Dash and Air BNB. Governing body members requested consideration to postpone and to have a City Council work session to learn more about the opportunity and long-range expectations of the MOU. Mr. Ames advised the owners of EQ Capital, LLC are currently in route to Cheyenne and he would speak with them regarding meeting with members of the governing body. Discussion included the desire to learn more regarding the agreement and the exciting possibilities

for Cheyenne. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. White. Mr. Laybourn moved to postpone to November 23, 2020, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” – all members of the governing body.

[CA] Development and Maintenance Agreement between Cheyenne-Laramie County Corporation for Economic Development, the City of Cheyenne, and the Cheyenne Business Park Owners Association for the Cheyenne Business Parkway Corridor Plan – referred to Public Services Committee.

[CA] Contract Modification #2 to Contract #7195 between the City of Cheyenne and Simon Contractors for cost impacts associated with changes in site conditions, Force Account increases, and changes to retainage on the Prairie Avenue and Frontier Mall Drive Intersection Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$238,839.00). (#7195)

[CA] Contract Modification #1 to Contract #7221 between the City of Cheyenne and Containment Systems for additional services to complete the Expansion of Landfill Permanent Litter Fence Project. (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #3 to Contract #5932 between the City of Cheyenne and Solid Waste Professionals of Wyoming, for Happy Jack Landfill Expansion to extend the contract to March 31, 2022. (Solid Waste Fund) – referred to Finance Committee.

Consideration of Bid #E-7-21 for Ice Control Product for the City of Cheyenne Street & Alley Division (2015-2018 & 2019-2022 1% Sales Tax). Vicki Nemecek, Public Works Director, reported that although there are alternative products such as sand, the Ice Slicer product eliminates broken windshields and the need to sweep streets following snow events. Upon inquiry, Ms. Nemecek advised the city has used this product for approximately 15 years. Concerns were voiced regarding the corrosion ice treatments cause on city streets and vehicles. Mr. Luna moved to accept the bid from Desert Mountain Corp., Riverton, in an amount not to exceed \$230,000.00, seconded by Mr. White. Motion to accept the bid carried. Voting “yes” – all members of the governing body with the exception of Mr. Case, Mr. Laybourn and Mr. Luna voting “no”.

[CA] Consideration of Bid #S-3-21 for a contract between the City of Cheyenne and Simon Contractors for the East 12th Street and Meadow Drive Mill and Overlay project (2015-2018 & 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$1,345,682.83). (#7255)

[CA] Consideration of Bid #S-6-21 for a contract between the City of Cheyenne and Dan Hart Patrol Service, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Earthworks Base Bid) Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$4,582,929.28). (#7256)

[CA] Consideration of Bid #S-6-21 for a Contract between the City of Cheyenne and Clean Air and Water Systems, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Geosynthetics Installation Base Bid) project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from in an amount not to exceed \$177,147.50). (#7257)

[CA] Consideration of Bid #S-6-21 for a contract between the City of Cheyenne and Northwest Linings & Geotextile Products, Inc., for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Geosynthetics Procurement Base Bid) project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$405,483.00). (#7258)

[CA] Consideration of Bid #E-10-21 for furnishing monitors, 2-in-1 computers and accessories for the City of Cheyenne, Cheyenne Police Department (Coronavirus Emergency Supplemental Funding, Bureau of Justice Assistance (CESF)). Motion (per Consent Agenda) carried (accepted bid from Sanity Solutions, Denver, CO, in an amount not to exceed \$72,144.00).

Consideration of Bid #S-2-21 for a contract between the City of Cheyenne and Casper Electric, Inc., for the 24th / 25th / Carey / Pioneer Traffic Signal Upgrade Project. (2015-2018 1% Sales Tax). Kris Jones, City Clerk, advised this item was inadvertently left off of Consent Agenda. This item was referred to Finance Committee.

Consideration of Bid #S-8-21 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2020 Miscellaneous Concrete Project. (2015-2018 & 2019-2022 1% Sales Tax). Kris Jones, City Clerk, advised that this item was inadvertently left off of Consent Agenda. This item was referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Appointments of Kaylee Ashley, David Barker, Ty Bronder, Garrison Cook, Ashen Doty, Makiya Green, Neveah Green, Emily Lucero, Zoey Lundin and Elizabeth Stump to the 2020-2021 Mayor's Youth Council. Mr. Luna moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr (Mayoral appointments).

Presentation of the Annual DDA Budget Report. Amber Ash, DDA Director, presented a year to date comprehensive report on the DDA annual budget. Ms. Ash provided details relating to multiple new programs that have been successful in attracting consumers to downtown businesses.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:51 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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